

HOUSE No. 1187

The Commonwealth of Massachusetts

PRESENTED BY:

James K. Hawkins

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to increasing consumer access to licensed rehabilitation counselors.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>1/16/2025</i>
<i>Hannah Kane</i>	<i>11th Worcester</i>	<i>3/24/2025</i>

HOUSE No. 1187

By Representative Hawkins of Attleboro, a petition (accompanied by bill, House, No. 1187) of James K. Hawkins relative to the definition of licensed mental health professionals under certain insurance laws. Financial Services.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1036 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to increasing consumer access to licensed rehabilitation counselors.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 22 of chapter 32A of the General Laws, is hereby amended by
2 striking out the last paragraph, as most recently amended by section 1 of chapter 80 of the acts of
3 2000, and inserting in place thereof the following paragraph:--

4 For the purposes of this section, "licensed mental health professional" shall
5 mean a licensed physician who specializes in the practice of psychiatry, a licensed psychologist,
6 a licensed independent clinical social worker, a licensed mental health counselor, a licensed
7 nurse mental health clinical specialist, a licensed marriage and family therapist or a licensed
8 rehabilitation counselor within the lawful scope of practice for such therapist.

9 SECTION 2. Section 47B of chapter 175 of the General Laws is hereby amended by
10 striking out the next to last paragraph, as most recently amended by section 2 of chapter 80 of the
11 acts of 2000, and inserting in place thereof the following paragraph:--

12 For the purposes of this section, "licensed mental health professional" shall
13 mean a licensed physician who specializes in the practice of psychiatry, a licensed psychologist,
14 a licensed independent clinical social worker, a licensed mental health counselor, a licensed
15 nurse mental health clinical specialist, a licensed marriage and family therapist, or a licensed
16 rehabilitation counselor within the lawful scope of practice for such therapist.

17 SECTION 3. Section 8A of chapter 176A of the General Laws is hereby amended by
18 striking out the next to last paragraph, as most recently amended by section 4 of chapter 80 of the
19 acts of 2000, and inserting in place thereof the following paragraph:--

20 For the purposes of this section, "licensed mental health professional" shall
21 mean a licensed physician who specializes in the practice of psychiatry, a licensed psychologist,
22 a licensed independent clinical social worker, a licensed mental health counselor, a licensed
23 nurse mental health clinical specialist, a licensed marriage and family therapist, or a licensed
24 rehabilitation counselor within the lawful scope of practice for such therapist.

25 SECTION 4. Section 4A of 176B of the General Laws is hereby amended by striking out
26 the next to last paragraph, as most recently amended by section 6 of chapter 80 of the acts of
27 2000, and inserting in place thereof the following paragraph:--

28 For the purposes of this section, "licensed mental health professional" shall
29 mean a licensed physician who specializes in the practice of psychiatry, a licensed psychologist,
30 a licensed independent clinical social worker, a licensed mental health counselor, a licensed

nurse mental health clinical specialist, a licensed marriage and family therapist, or a licensed rehabilitation counselor within the lawful scope of practice for such therapist.

SECTION 5. Section 4M of 176G of the General Laws is hereby amended by striking out the next to last paragraph, as most recently amended by section 10 of chapter 80 of the acts of 2000, and inserting in place thereof the following paragraph:--

For the purposes of this section, "licensed mental health professional" shall mean a licensed physician who specializes in the practice of psychiatry, a licensed psychologist, a licensed independent clinical social worker, a licensed mental health counselor, a licensed nurse mental health clinical specialist, a licensed marriage and family therapist, or a licensed rehabilitation counselor within the lawful scope of practice for such therapist.